

Hello. Hello there. Evan, my name is Eve Vandell. I'm the acting director of the Residential Tencies Branch, and with me is Scott Miller. Good to meet you. Ashante, Mr. Handel. Good to meet you, Mr. Miller. Mr. Scott is the manager of the Adudication and Mediation Services area. Excellent. Well, it's wonderful to meet you. I understand we have a very limited amount of time today, and I kind of overwhelmed you with background, so I understand. But please, how do we proceed? Well, you know, I think that you you have a number of different things highlighted. You know, I just want to preface again that, you, we can't really give any advice on how to prepare for a hearing or anything like that. And, if you have, I don't even know, I didn't even check to be honest with you. I don't know if you have a filing or a claim on file. But, you know, we don't want to talk about a particular case specifically. But if you have some questions about procedure, how it works when you come to the RT for a hearing, we can we're more than happy to give you that information. With respect to, you know, going through itemized sections of the act, I would be hesitant to go into too much detail about each section of the act because depending on the situation itself, it could vary how that section of the act is applied. Yes. So that's basically, you know, my preamble. But Evan, why don't you tell us a little bit about what it is that what it is that you're experiencing and then we'll try to do our best to support you with information about your rights and responsibilities as a tenant, but also it sounds as though you're an advocate for others within your complex, potentially. And, you know, would like to hear what's happening. Yes. So, and I understand impartiality and I understand that your duty here is to the Act, the residential Act. That's correct. Our duty is uphold the law. That's correct, yeah. So, the errors I've made previously is I simply wasn't aware of the law, as well as I am now. And so now it's a very statutory-based approach to address the issues of the landlord, foreign properties, and the regulatory filings. And so without going into specifics, because that's what you said, not to do, at this point, I have what I consider to be evidence that may lead to potentially criminal charges. And so it's quite significant. And your jurisdiction is the RTA, and this steps out. And so even though I gave you a huge list of questions, let me be a little bit cleare. When there is non-compliance with the act. At what points are evident evidence thresholds met that the RTB is going to communicate with, let's say, the RCMP? That's a big one, because that's where we are right now and I'd like to know more. Like, what I would say, ev is that if you have evidence that you believe is criminal, that is something that you would present to the police yourself. You know, if it's going beyond a hearing and you present information to the RTB and we have that information and we think that it is criminal in nature as far as an investigation would be concerned on our end. So like, I'm just going to give you an example. We have various areas that do investigations. So they might investigate attendance. They might investigate a landlord. So if by chance you have evidence and you put in a claim for some sort of investigation, I don't know if this is repair related, if it's like, you know, disconnection of services or whatever the case is, whatever that would be through our investigation, if we found that your evidence was, you know, accurate and that there was enough, we may refer it to police. We may. Like that wouldn't be. That's exactly my point. So the point is, what is the threshold? Because I have sworn declarations or affidavits. I have ledgers, I have forms. So at what point do I consult with you directly accing director in order to expedite this process? Because I certainly can go by each of the internal regulatory guidelines and this investigation. But at this point, I have the evidence, what I believe to be credible evidence. And what's the next step? Because it's right here. Yeah. So Evan, I would say that if you have evidence that

you think is sufficient that's demonstrating criminal activity, then you should go to police with that evidence because that would not be evidence that we would be assessing through the RT. You know, typically, if through an investigation, like a natural investigation at the RT, if we found that there was criminal behaviour, we would maybe, and I know that you're looking for a threshold. We don't have a, it's not black and white. Every case is different and varies, and we would seek legal, you know, legal assistance in making that determination, then we would, if sufficient evidence is there through a natural investigation, we might refer it to the authorities. However, if you have collected evidence and it is not related to the RT and we are not doing an investigation that is going to take us down the path of what it is that you have, then I would strongly recommend that you follow what you think is the best thing to do with the authorities. I understand. So that being said, do you have a memorandum of understanding with the RCMP or other interprovincial agencies such as a consumer protection? Do you have that relationship of that communication, where these guidelines are set for interprovincial departmental communication? We have relationships with various agencies within the province and within municipalities. I wouldn't say that we have a memorandum of understanding or anything like that. We do work in coordination on occasion, but with respect to legal matters outside of the RT, I wouldn't say that we really have that connection or hand off. Okay. Let's move on. Yes, I understand. Very good. Thank you, thank you. So here's another question, a little tighter. Once noncompliance is confirmed, what is the internal policy trigger that causes the branch to issue a notice of administrative penalty up to the maximum 5,000 and this is RT 193.1. And on what timeline? So even though it appears that the officers of the RTB are interpreting compliance, it really seems to be the opposite. So at what point does this trigger an administrative penalty? When does this happen? Yeah, Sorry, go ahead. Sorry, no, you can go right ahead. Oh, okay. Yeah, thank you. What I would say is that the administrative penalty is not time limited. I would say that there are certain categories in which an administrative penalty can be applied. I don't know if you've also referenced the residential, sorry, tenancies regulation. Yes. But they coincide with each other. So what, you know, 193 kind of flows into the regulations itself. So there's specific categories that apply. And depending on the nature of the situation, it's not always just about noncompliance in a moment, right? So sometimes you have a landlord or a tenant, whoever an admin penalty could be applied to, where you're discussing with them. And sometimes, you know, errors are made and you know, we want to make sure that we're helping correct those errors. And sometimes the admin penalty is not the appropriate believer to pull. So, okay, thank you. A little more specifically. When evidence indicates falsified above the guideline increased filings or deliberate ledger manipulation, at what point does the branch refer the matter to consumer protection or law enforcement? And our land landlords given prior notice of that referral. Just hypothetically. Yeah, so I'm gonna maybe refer this one to Scott, but I don't I just a preface that Scott's response. The RTB is the deciding authority on those matters, and referrals, I don't think are means made to. I'll let you give a response there. Right. So when, for example, an above guideline is reviewed, and the officers, if they were to be able to determine that something is, first of all, falsified can be very challenging, very difficult. And while one party may believe something to be so, that's not necessarily an officer's interpretation of the matter, right? The officer has the ability to reach out to all the parties involved to be that kind of a determination. There has been instances in the past where there has been concern of a matter similar to what you're describing.

That has gone to Securities Commission, but I do believe that that went via the residential Tennessees's Commission, not from the branch. They have they have some different, I guess, powers than we do. And that's why it was referred through them. Yeah. I understand. Thank you, Mr. Miller. So on that note, the officers with the RTB, well, they're not lawyers. And so it seems that the people that I've interacted with don't seem to have a good sense of the law. Now, that's no offence to them or to your department, but it would certainly seem that there is some sort of miscommunication where the officers of the RTB are making very questionable decisions. And so here's another question for you, and I know this might be better for the RTC. But as the acting director and Mr. Miller, what is your role within the department? Manager of Adjudication and Mediation Services. Beautiful. So I would like to invite some officers to an appeal as witnesses. What do you think of that? you know we would have to take a look at what it is that is being required, because the RTB does not attend an appeal in order to defend their own orders. However, if an RTB employee was witness to something through an investigation of some kind, they may be asked through the RTC to attend. But it would be the RTC that would make that request. Yes. And I'm just going to interject. However, the RTC cannot compel a member of the RTB to be hold it... Yeah, I understand. Um, that's, it's reasonable. Um, so just today, I received, uh, a director's order. Uh, The outcome was very surprising. Um, And so I'm a little confused at how this happened. I mean, the fact is, I did request for the option to amend it so I could take it to the RTC, it does seem like the RTB is failing to provide fairness with the tenant and the landlord. And so without going into details of the case, this is going back and certainly does involve communication with RTB officials with landlord representatives. So that leads me to want these RTB officers to be witnesses, but I hear what you're saying, Mr. Miller. RTC cannot compel. So at what point are directors' orders looked at from another level within the RTB? Or is it immediately next step to RC? Is that there any degree of oversight to directors' actions? The director's actions need to be reflected from the act and its regulations. And if anyone, a tenant and or landlord, at any time feels there's unfairness or something that has been not happened that should have happened, they should go to the Oitzsman and make their case there if they've already tried with the RTC. And the Oitzsman would then investigate that matter. Yes, I understand. wants to add a little stuff in here. Yeah, sorry, I'm going to speak to that as well. Just once the RT has issued an order, in most instances, there are instances where this doesn't apply. if a tenant believes that there's certain things that the director can amend a decision on. But that would be amending something specific, right? So if there was a calculation error, if there was an address, a name wrong, to correct certain injustices, it's not, you know, carte blanche, it starts all over again, because that then would be a natural appeal. But that request to amend can only be made during the amend, like, sorry, the appeal period. So once that has expired, the parties affected request amendment at that point in time. They would have to seek either a motion to extend for leave to app appeal and then they can appeal through the commission. Okay, thank you. So our time's running out, so excuse me for speeding up. Sounds good. So. Oh, no, that one can't address right now. So. when I what are my options for involving the acting director directly? Because I would like to expedite our filings. And so here's a big question. Would a single omnibus order cover backdating and all these issues that I'm trying not to express, would that be what is asked for or would it be sequential orders? That would be better? Like in terms of efficiency? Because I could give everything in a massive, um, binder, but that might not be best. So what is best for efficiency? And can I involve the director, Mr. Vandal,

directly to have oversight on this matter? No, I wouldn't I wouldn't put myself in that position because there'd be an appearance of leaning towards one party versus the other. Now, Evan, I'm going to just ask you a question. I don't know I understand that you're representing a group. Now, typically, actually, I don't I know for certain that RTB does not handle cases or hearings in a as a group. So each individual will have to put in a complaint or whatever it is that that they're putting in, that you're putting in individually. Now, that doesn't mean that you can't share the evidence amongst all of them so that everybody appears with the same evidence that that might be something you may want to consider. One thing that. I. Yeah, I think that's all I have to see on that St. I don't know if you've have anything. Yeah, no. Again, each hearing is always going to be between the landlord and an individual, right? Or a story, I should say, the tenants in a unit, right? So the specific tenancy, that's always going to be the case. If it's a claim, an order of possession, a determination, or a compliance investigation, right? Because those are the sorts of things that you would receive orders for. And in each of those instances, it's going to be between the two parties, or in some instances, multiple parties, in that one tendency agreement, right? So it's never going to be an entire complex. Objections can be made that way, right? When there's an above guideline. I mean, it happens all the time. Everybody submits essentially a signed document. They've all signed it, that's everybody presenting their concerns. We still view that as just a whole bunch of individual persons. I And it may lead to a compliance being open for an entire building, but again, every instance is its own specific hearing or case. So is that the same if I have legal authorization to represent these tenants? would still be the same because you'd be representing each of those in their own instance. Okay. Okay. That's very good information. Thank you. So that leads me to realize that it's definitely with the commission where I can have, where I can, in fact, represent these other tenants. And that's I don't have my statute in front of me, but there's a provision for that. There's more, and I really do appreciate you two spending time with me today. So thank you. No problem, of course. Where is it? Correct enforcement referral. Daily fine. Um, Bill 212 doesn't seem like a lot of Manitobans are aware of this. Now, is the RTB responding to Bill 212 in their their compliance investigations? Bill 212 was never made it past at the session, so it was not adopted. Oh, shit.. Oh, sorry. Excuse me. I didn't was that. Yeah, that was a private member's bill. Yeah. And it never made a few. The RTB did introduce Bill 10, and that will come into force a proclamation. And John Justice had introduced Bill 32, which did receive royal assent. Okay, that's wonderful. I don't know how I missed that, but sometimes it happens. Well, that's great news. Okay. Rent discounts. Here is a big question for you. If a rent discount is removed within the 12 month period from the rent increase until the next planned one, does that constitute a rent increase to remove the rent discount? Or does that depend on the clause that is associated in the agreement to determine the conditions? Yes. So there's a couple different ways that a landlord could remove a discount in between, rent increases. That's typically if it's part of the tendency agreement, right? So you're the 12 months, sometimes you'll have a step lease and rent increases don't coincide with the resigning of those leases, but they may very well have informed a party that what this can be removed midway through. That's one instance. Another instance is, as you've indicated, conditional discounts, right? If somebody fails to uphold whatever condition was assigned to not. Typically we see those as ten paying their rent in full and on time. If somebody fails to do that, landlord has the opportunity to, if they so choose exercise their right to remove that discount. Yes. So in that conditional agreement or to make something conditional, does the section need to be filled out?

Or does a blank section with a single check or two two, technically? Does that allow for any action? If there's ambiguity on a lease agreement, a tenant may have something for the branch to review. I don't want to say yes or no without seeing what it is you're speaking to exactly. At the branch, ideally, we would like to seek discount agreements written separately. Sometimes they're in the Tennessee agreements. Sometimes they're part of the notice of rent increase, but ideally, a discount agreement is separate so that it can be made as clear as possible, right? That's how we would like to see it. But without seeing what it is that's actually being referred to, I can't say whether or not it was completed, you know, fairly and completely, right? So, yeah. So Manitobans are aware, I'm speaking broadly, of, let's call it a rent discount scheme. So we are aware of it. And that's going to be something that I'll be investigating, hopefully with you. One of the issues that we're facing is that there's also this Manitoba lugguxury exemption. There's something funny, and I haven't forgive me, I haven't investigated it enough, but using a rent discount to, uh, sorry, I'm getting ahead of myself, in order to qualify for a rent, uh, Oh, I'm sorry. Maybe I need to check my notes to say it No problem... Sorry, give me one moment, and I know that we're running very late, which is unfortunate. Uh, sorry, let me just jump back for a second. Form two, application for rent review? Is that one of your forms, or is that RTC?, that'd be one of ours. That's just a request for rent review if a tenant believes that Llord has increased rent unfair as illegally. So it'd be a what we refer to as a compliance review to determine if a labour is in compliance. Yes. Okay. Wonderful. So when you're looking through the applications for rents above the guidelines, do you look at any other documents? Is it the form three that you look at, or is it just the notice of the rent increase plus the F 4? Do you look at the history? Yeah, our system tracks the history, we're notified if there's an inconsistency torie.. We're notified if there's an inconsistency. So if a previously registered rental, one that was approved, is now higher than what it was last registered at, we will see that and we communicate with the landlord to confirm why sometimes it is because there's an exemption. There's other reasons. But other times we will correct it and like restore it back to what it was supposed to have been. So no, the previous rise, and that's, I don't know if you had the opportunity to review residential regulation, Previous rents are taken into consideration by the officer when they're reviewing. So it's the red history, it's the expenses, and the proposed rents. But is it the forms? But is it the forms? Form three? Some landlords will submit them and we do request them. The only thing we're confirming on those is the rents being correct. So do you mean the basic rent or the actual amount the tenant will pay? Not the actual amount the tenant will pay. So it's going to be the basic rent plus each of those other ones. Does that torup. Forgive me for interrupting you just because I know we're all watching this time. The rent discounts. Is that taken into account? Does that alter the basic rent? No, no, it does not. That's an agreement over and above what the legally set rent is, right? So that's an agreement between loud word and tenant. So what you're saying is that if it's not legally allowed, then it is illegal? If the rent has been increased by an amount over and above what we would have applied or approved, or what the guideline is, then if it's not an exempt unit, that would be an illegally increased rent. What do we do there? If it's illegally ill and we're talking about the RTA, what happens next? Rent review, you can request a review of your rents. Okay. Okay. So what I've gathered from you is that I have to be very specific with the forms that I file. I can only do myself as an individual. And clearly, I've been going at it wrong. There's one more question if I have you for just one more minute, if that's okay? Yep. Okay. I have so many tabs open. It's frustrating. Um.. July 27th, 309. No, that's not right. Shoot. I'ful. Ah, um. Service

withdrawal. Let's say that there is a service, um, but it's not included in the Tennessee agreement. Now, with a a long term tenant, they might have good grounds to say that it's actually a material term, an implied term within the tenancy agreement. How closely does the RT watch for that? Because if it's not explicitly mentioned in the lease agreement, a landlord might choose to circumvent law. So I'm talking about material terms, the implied term in a tendency. What do we do about that if there's a disagreement with the landlord and they say, well, it's not really in the tenancy agreement, it's not explicit. But I were to say with an affidavit, that, in fact, these services existed historically, customarily, it's a material term and it's implied. How do we deal with that? So if there's already an application for the service withdrawal in place, and a tenant disagrees and believes that there should be an assigned value to the loss of that service, they should be presenting their arguments when they're giving the opportunity to review that, right. The branch will we take all comments and objections into consideration, and we do review them, and we make a finding we make that determination based on all the information gathered. If there's no application that's been submitted for the withdrawal of service, again, that could be if it's been a permanent withdrawal of something that could very well be that it could be considered a compliance issue as well. And you would use the same process as the rent review, because services and facilities are what you're paying for in your unit. And if there's an implying one or one that's written, if you believe that you've lost one of those and there's the value to it, you need to present that to the branch, and a compliance officer would review that. Yes. Let's say that one were to receive a service withdrawal, but it's only to one tenant, and none of the other tenants receive the service withdrawal. Now, how do we address that? Despite them all having the same services or withheld? How do we address? We really have to get moving on to our next meeting. I'm so sorry. We're running late for them now. I understand I hope this has been helpful. Like, I obviously see that you have a number of questions and things like that. And like, honestly, your best route or having like more time with somebody would be to call the RT general line. Yes. And they could provide you with some general information about these matters. Like, you know, I appreciate that you wanted to speak with me. I was happy to do so, but these are fairly general questions that our contact centre can help with. I understand. I really appreciate your time, and thank you. You've both been very helpful. Well, thank you so much. Very kind, very nice to meet you and wishing you all the best. Thank you so much. I might be in touch one day. Okay. Okay, take care. Bye bye.